The Mississippi Black Codes

State of Mississippi · 1865

Source: Mississippi Black Codes, Laws of Mississippi (1865), pp. 82 ff. Public domain. Standard anthologized selections from the codes.

> Right after the Civil War, Mississippi's legislature passed laws to control freedpeople — forcing labor contracts, allowing forced “apprenticeship” of Black children, and criminalizing unemployment — recreating slavery in all but name and provoking Radical Reconstruction.

COMPLETE TEXT — UNEDITED

1. Civil Rights of Freedmen in Mississippi. All freedmen, free negroes and mulattoes may sue and be sued . . . may acquire personal property . . . and may dispose of the same in the same manner and to the same extent that white persons may: [but no] freedman, free negro or mulatto . . . [shall] rent or lease any lands or tenements except in incorporated cities or towns, in which places the corporate authorities shall control the same.

All contracts for labor made with freedmen, free negroes and mulattoes for a longer period than one month shall be in writing . . . and if the laborer shall quit the service of the employer before the expiration of his term of service, without good cause, he shall forfeit his wages for that year up to the time of quitting.

Every civil officer shall, and every person may, arrest and carry back to his or her legal employer any freedman, free negro, or mulatto who shall have quit the service of his or her employer before the expiration of his or her term of service without good cause; and said officer and person shall be entitled to receive for arresting and carrying back every deserting employee aforesaid the sum of five dollars.

2. Mississippi Apprentice Law. It shall be the duty of . . . civil officers . . . to report . . . all freedmen, free negroes, and mulattoes, under the age of eighteen . . . who are orphans, or whose parent or parents have not the means or who refuse to provide for . . . said minors; and thereupon it shall be the duty of said probate court to . . . apprentice said minors to some competent and suitable person: Provided, that the former owner of said minors shall have the preference.

3. Mississippi Vagrant Law. All freedmen, free negroes and mulattoes in this State, over the age of eighteen years, found on the second Monday in January, 1866, or thereafter, with no lawful employment or business, or found unlawful assembling themselves together, either in the day or night time, and all white persons assembling themselves with freedmen, free negroes or mulattoes . . . on terms of equality . . . shall be deemed vagrants, and on conviction thereof shall be fined . . . and imprisonment at the discretion of the court.

4. Penal Laws of Mississippi. That no freedman, free negro or mulatto, not in the military service of the United States government, and not licensed so to do by the board of police of his or her county, shall keep or carry fire-arms of any kind, or any ammunition, dirk or bowie knife.

If any freedman, free negro, or mulatto, convicted of any of the misdemeanors provided against in this act, shall fail or refuse for the space of five days, after conviction, to pay the fine and costs imposed, such person shall be hired out by the sheriff or other officer, at public outcry, to any white person who will pay said fine and all costs, and take said convict for the shortest time.